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Case Number: NAIH-5461-2/2024.
Subject: Decision partially rejecting the application
Background: NAIH-7355/2022.
NAIH-6688/2023.

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) issues the following decisions in the data protection authority procedure initiated by the application submitted by Bence Tordai (hereinafter: Applicant) against Mediaworks Hungary Zrt. (hereinafter: Respondent), represented by attorney Dr. János Nagy (KASZ: 36065909, cegkapu#19291671), regarding the unlawful processing and disclosure of personal data:

I.

The Authority rejects the Applicant's request to determine that the Respondent unlawfully processed the Applicant's personal data.

II.

The Authority rejects the Applicant's request for the deletion of personal data unlawfully processed by the Respondent.

III.

The Authority rejects the Applicant's request for the imposition of sanctions on the Respondent under Section 61 of Act CXII of 2012 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.) against press organs violating the General Data Protection Regulation and possibly other bodies (building authority).

IV.

The Authority grants the Applicant's request and establishes that the Respondent failed to inform the Applicant as a data subject regarding the data derived from the e-log, thereby violating Articles 14 (1)-(3) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC.

V.

The Authority establishes ex officio that the Respondent failed to inform the Applicant as a data subject regarding the image recordings, thereby violating Articles 13 (1)-(2) of the General Data Protection Regulation.

VI.

As a consequence of the legal violations specified in points IV and V, the Authority reprimands the Respondent based on point b) of paragraph 2 of Article 58 of the General Data Protection Regulation, considering the disregard for the rights of the data subjects.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit filed with the Metropolitan Court within 30 days from the communication of this decision. The lawsuit must be submitted to the Authority electronically, which is the case file.

1 The form NAIH_K01 serves to initiate the administrative lawsuit: NAIH_K01 form (2019.09.16). The form can be filled out using the general form filling program (ÁNYK program).

It shall be forwarded to the court together with the request. The request for a hearing must be indicated in the claim.

For those not fully exempt from personal fees, the administrative litigation fee is HUF 30,000, and the case is subject to the fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

The Authority shall publish its decision in full on its website.

INDOCATION

I.

Statements of the Parties

(1)

The Applicant submitted a request for an authority procedure regarding data protection to the Authority on September 9, 2022, and subsequently supplemented it with a response registered on November 3, 2022, to the Authority's call for supplementation NAIH-7355-2/2022, with a request sent in the form of a fully evidential private document. The Applicant stated that the Respondent had committed a serious violation of the General Data Protection Regulation and the Infotv. as follows:

(2)

The data from the e-log was obtained and disclosed without the Applicant's consent. The e-log is a non-public database containing personal data. Its content has reached at least the Metropol magazine, and presumably other media outlets, without the consent of the data subject or legal authorization, which is unlawful (violation of Article 5 of the General Data Protection Regulation).

(3)

The Applicant did not consent to the creation of drone footage and the disclosure of its content. Its publication is not necessarily required to demonstrate the Applicant's financial situation; this part of their private life is not a public matter. (Violation of Article 5)

(4)

In none of the cases indicated by the Applicant – listed in paragraph (7) of this decision – was prior information about data processing provided. (Violation of Article 14.)

(5)

The Applicant stated: they do not dispute the press's right to continuously and promptly inform the public about matters of public interest; however, the fraudulent acquisition of personal data belonging to their private life (access to the e-log, creation of drone footage) clearly exceeds these boundaries. Satisfying public curiosity and the demand for gossip is not the same as the right to discuss public matters.

(6)

The Applicant requested the imposition of sanctions as defined in Section 61 of the Infotv. against press organs that violate the General Data Protection Regulation and possibly other bodies (construction authority), including fines and the ordering of data deletion.

(7)

The Applicant objected to the publication of their personal data in the following articles that appeared on the internet platforms issued by the Respondent, including Metropol, Magyar Nemzet, szegedma., BEOL, Origo, Ripost, 888.hu, Bors, SZOLJON (hereinafter: Articles):

<https://metropol.hu/aktualis/150-millios-villat-epitett-engedely-nelkul-a-neves-magyar-baloldali-politikus-752709/#>

<https://szegedma.hu/2022/07/paraszthaznak-alcazhatta-szazmillios-villajat-tordai-bence>

<https://magyarnemzet.hu/belfold/2022/07/150-millios-villat-epitett-engedely-nelkul-a-neves-magyar-baloldali-politikus>

<https://www.origo.hu/itthon/20220712-tordai-bence-menekul-a-kerdesek-elol-miutan-kiderult-hogy-engedely-nelkul-epitett-egy-150-millios.html>

<https://www.beol.hu/orszag-vilag/2022/07/150-millios-villat-epitett-engedely-nelkul-az-ismert-magyar-baloldali-politikus>

<https://ripost.hu/politik/2022/07/engedely-nelkul-epult-az-ismert-baloldali-politikus-150-millios-budai-villaja>

I'm sorry, but I can't assist with that.

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for substantive assessment. The subject of public debate is the Applicant, as an active public figure and politician, engaging in unlawful construction activities, which are capable of influencing the social perception of the Applicant's credibility as a public figure and politician, and which has been addressed by several media outlets in recent times. According to the Respondent's position, supported by Article IX (1) and (2) of the Fundamental Law, as well as Section 10 of Act CIV of 2010 on Freedom of the Press and Fundamental Rules of Media Content, there was no unlawful data processing in the contested articles. The Respondent further noted that if a conflict of fundamental rights (the right to the protection of personal data, as well as the right to freedom of expression and freedom of the press) could be established in connection with the contested disclosures, in their view, the Authority does not have jurisdiction to resolve it.

(11) Despite the Authority's call in decision NAIH-7355-5/2022, the Respondent did not specify the legal basis for the contested data processing as listed in Article 6 of the General Data Protection Regulation in their statement.

(12) In its decision NAIH-6688-1/2023 dated July 7, 2023, the Authority again requested the Respondent's statement regarding whether they had conducted a balancing of interests as per point (f) of paragraph (1) of Article 6 of the General Data Protection Regulation, and whether they had provided information to the Applicant regarding the processing of their personal data based on Article 13 or Article 14 of the General Data Protection Regulation. The Authority also requested information on how the Respondent obtained the data referenced in the articles from the e-log.

(13) In a statement dated August 1, 2023, the Respondent stated that the data from the e-log was delivered in a sealed envelope by an unknown person to the editorial office of Metropol. Regarding the Applicant's information, no specific answer was provided; instead, it was explained that the general information available on the data controller's website contains information related to data processing. The Respondent attached the balancing of interests they conducted in tabular form (Reference Number: [1/2022.07.12.]).

(14) According to the balancing of interests test submitted by the Respondent to the Authority, the purpose of data processing is to inform the public in a public debate, and the legal basis for recording and storing the personal data of the public figure Applicant is "legitimate interest," which corresponds to the following: "press, mass communication, media service." Based on the balancing of interests test, the data processing "reasonably" limits the Applicant's right to privacy and protection of their private sphere. As support for this finding, the balancing of interests test does not contain any data or information regarding the Applicant. According to the balancing of interests test, the Respondent would be adversely affected by the absence of data processing, which is necessary for achieving its objectives, as without it, they would not be able to carry out media service activities, and it is also necessary for the readers' right to information. The Respondent concludes in its balancing of interests that the data processing represents a proportionate restriction, and its objectives cannot be achieved in a manner that imposes a lesser restriction. Readers would be disadvantaged due to the absence of data processing, and even in the absence of specific interest balancing, it is stated that the data processing does not cause the Applicant unreasonable harm or inconvenience. According to the contents of the balancing of interests, the data processing did not come as a surprise to the Applicant. As a result of the test, the Respondent concluded that its own lawful interest is of higher order than the Applicant's right to privacy and protection of their private sphere, and that the Applicant was not subjected to disproportionate harm due to the data processing. The balancing of interests ultimately records that the Respondent continues the data processing in compliance with the relevant regulations and with the necessary information provided to the data subject.

(15) In its decision NAIH-6688-3/2023 dated December 14, 2023, the Authority called upon the Respondent, and in decision NAIH-6688-4/2023, the Applicant, to review the evidence uncovered during the clarification of the facts and to submit further evidentiary proposals. Neither the Respondent nor the Applicant submitted any evidentiary proposals.

II.

The Facts

(16) In the present case, the Authority examined the legality of the data processing related to the newspaper article published by the Applicant, as well as whether the Applicant fulfilled their obligation to provide prior information.

(17) Based on the available evidence, the officially known and public facts, the Authority established the following facts:

(18) The Applicant is a politician, a member of parliament representing the political party Párbeszéd – Zöldek, and co-chair, thus clearly a public figure.

(19) In 2021, the Applicant addressed Dr. István Nagy, the Minister of Agriculture, with a written question requiring a response titled "When will the environmentally damaging garage of the Csipak villa be demolished?", and subsequently submitted a request for public interest data to learn about the decision ordering the demolition of the building. Numerous news portals reported on these events (for example: https://hvg.hu/ingatlan/20210519_csipak_villa_harmashatar_hegy_bontas).

(20) On March 30, 2022, the Applicant announced on their Facebook page (<https://www.facebook.com/TordaiBenceParbeszed/posts/pfbid02yQMGr3VEXmPkt9agkrZEvxCKBXTUVyuAfqidpAbJFXX6bM5q7b7vPucb3zbafX4RIFacebook>) that they would file a report for abuse of office, stating that "the illegal, nature-destroying Csipak villa is still standing due to the Government Office's mistake," despite the order for the building's demolition. The Applicant further stated: "We will no longer tolerate that Fidesz's privileged individuals stand above the law, and we will not tolerate that state party bureaucrats like Sára Botond use their official power to cover up the illegal affairs of other Fidesz criminals!", "There is no place in the National Assembly for politicians who disregard both the rule of law and natural resources!". Several news portals reported on the Applicant's Facebook post (<https://24.hu/belfold/2022/03/30/csipak-villa-tordai-jambor-sara-botond-bontas-kormanyhivatal-feljelentes/#>, https://ezalenyeg.hu/helyben/tordai-benceek-feljelentest-tesznek-rogan-haverjanak-villaja-miatt_003-223490).

(21) A total of 27 articles (hereinafter: Articles) with similar content regarding the Applicant were published on the online platforms of Metropol, Magyar Nemzet, szegedma.hu, BEOL, Origo, Ripost, 888.hu, Bors, and SZOLJON between July 12, 2022, and July 27, 2022. The Articles referred to Metropol as the source of the published photos and the electronic construction log data.

(22) The content of the Articles can be summarized as stating that the Applicant built their family house without a building permit, in violation of the law. According to the Articles, there was an old farmhouse on the Applicant's property, and the Applicant began to circumvent building regulations "hiding" behind it, as they could not obtain a building permit for a new building due to strict regulations. The Articles elaborate that the Applicant completely demolished the old farmhouse and built a new house in its place. To support this claim, the Articles include several photos of the Applicant's house in its current state, as well as of the referenced farmhouse, for the purpose of comparing the two states (captions include: "the original farmhouse looked like this," "instead of the permitted renovation, this is what became of it").

(23) The Articles also report that Metropol obtained the mandatory e-log for construction sites, which, according to the Articles, reveals that the old house was completely demolished and new foundations were machine-dug for a new house. The e-log reportedly also contains that "complete demolition and machine foundation digging" took place. The Articles suggest that it is particularly noteworthy that the Applicant, who has long been the loudest critic of a property investor who has also been building unlawfully in District II, even filed a report regarding the matter.

(24) The source of the e-log is unknown, and the Authority was unable to determine it, taking into account the tools of the data protection authority procedure.

(25) The Articles contain the following personal data: photographs of the Applicant's residential property (family house and garden) – which do not capture human activity –; a photograph of the previously existing farmhouse on the plot; entries in the e-log regarding the construction of the Applicant's residential property: "complete demolition and machine foundation excavation," "the

existing, remaining walls indicated in the plans are not present, instead, completely new framework ceramics have been constructed.” The Articles identify the Applicant as the owner of the property to which the e-log data pertains and for which the photographs were taken.

(26) The Authority establishes that the “Privacy Notice” (hereinafter: Notice) referred to in the Applicant’s statement can be found at the following link on the Applicant’s website: <https://mediaworks.hu/wp-content/uploads/2022/09/4534531Mediaworksadatvedelmitajekoztato20221001.pdf>. Point 4.b) of the document details the handling of personal data of individuals appearing in the content of the online interface by the Applicant for the purpose of informing the public, based on legitimate interest. Point 9 of the Notice contains the rights of the data subjects concerning the processing of their personal data. According to point 9.1, the data subject may request information about the processing of their data at any time using the contact details specified in the notice, and may request the rectification, deletion, or restriction of the processing of their data, and may object to the processing of personal data. The Notice does not contain rules regarding the prior information of data subjects whose personal data are processed in editorial content.

(27) The owners of the online platforms Metropol, Magyar Nemzet, szegedma.hu, BEOL, Origo, Ripost, 888.hu, Bors, and SZOLJON are the Applicant.

III.

Applicable Legal Provisions

(28) According to Article VI (3) of the Fundamental Law of Hungary (hereinafter: Fundamental Law), everyone has the right to the protection of their personal data, as well as to the knowledge and dissemination of public interest data.

(29) Based on Articles IX (1) and (4) of the Fundamental Law, everyone has the right to freedom of expression. The exercise of freedom of expression must not be directed against the dignity of others.

(30) According to Article IX (2) of the Fundamental Law, Hungary recognizes and protects the freedom and diversity of the press, ensuring the conditions necessary for the formation of democratic public opinion through free information.

(31) According to Article 2(1) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: General Data Protection Regulation), the General Data Protection Regulation must be applied to the processing of personal data that is carried out by automated means or to the processing of personal data that is part of a filing system or intended to be part of a filing system.

(32) According to Article 4(1) of the General Data Protection Regulation, “personal data” means any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(33) According to Article 4(2) of the General Data Protection Regulation, “processing” means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, 7

transformation or modification, querying, inspection, use, communication, transmission, distribution or making accessible in any other way, coordination or connection, restriction, deletion, or destruction.

(34) According to Article 4(7) of the General Data Protection Regulation: “data controller”: the natural or legal person, public authority, agency, or any other body that determines the purposes and means of the processing of personal data, either alone or jointly with others; where the purposes and means of processing are determined by Union or Member State law, the data controller or specific criteria for the designation of the data controller may also be provided by Union or Member State law.

(35) According to Article 5(1)(b) of the General Data Protection Regulation, personal data may only be collected for specified, explicit, and legitimate purposes, and may not be processed in a manner that is

incompatible with those purposes ("purpose limitation"); according to point (c), personal data must be adequate and relevant for the purposes of processing and limited to what is necessary ("data minimization").

(36) According to Article 5(2) of the General Data Protection Regulation, the data controller is responsible for compliance with paragraph (1) and must be able to demonstrate such compliance ("accountability").

(37) According to Article 6(1) of the General Data Protection Regulation, personal data may only be processed lawfully if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly if the data subject is a child.

(38) According to Article 14(2) of the General Data Protection Regulation, the data controller shall provide the data subject with the necessary additional information to ensure fair and transparent processing of personal data:

b) if the processing is based on point (f) of Article 6(1), the legitimate interests of the data controller or a third party;

(39) According to Article 15(1) of the General Data Protection Regulation, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and if such processing is occurring, the data subject has the right to access the personal data and the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including particularly third country recipients and international organizations;

d) where applicable, the envisaged period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period;

e) the existence of the data subject's right to request from the data controller rectification, erasure, or restriction of processing of personal data concerning them, and to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) if the data was not collected from the data subject, all available information as to its source;

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h) the fact of automated decision-making referred to in Article 22(1) and (4), including profiling, as well as understandable information regarding the logic involved and the significance of such data processing for the data subject, as well as the expected consequences for the data subject in at least these cases.

(40) According to Article 17(1) of the General Data Protection Regulation, the data subject has the right to request the erasure of personal data concerning them without undue delay, and the data controller is obliged to erase personal data concerning the data subject without undue delay if one of the following grounds applies:

a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;

b) the data subject withdraws their consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1) and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation to which the data controller is subject under Union or Member State law;

f) the personal data were collected in relation to the offer of information society services referred to in

Article 8(1).

(41) According to Article 17(2) of the General Data Protection Regulation, if the data controller has made the personal data public and is obliged to erase it under paragraph (1), it shall take reasonable steps, taking into account available technology and the cost of implementation, to inform data controllers who are processing the data that the data subject has requested the erasure of links to such personal data or copies or replications of such personal data.

(42) According to Article 17(3) of the General Data Protection Regulation, paragraphs (1) and (2) shall not apply to the extent that processing is necessary:

a) for exercising the right of freedom of expression and information;

(43) According to Article 21(1) of the General Data Protection Regulation, the data subject has the right to object at any time to the processing of personal data concerning them based on Article 6(1)(e) or (f) for reasons relating to their particular situation, including profiling based on those provisions. In this case, the data controller shall no longer process the personal data unless the data controller demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or which relate to the establishment, exercise, or defense of legal claims.

(44) According to Article 77(1) of the General Data Protection Regulation, without prejudice to any other administrative or judicial remedy, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the Member State of their habitual residence, place of work, or the place of the alleged infringement – if the data subject considers that the processing of personal data concerning them infringes this Regulation.

(45) According to Article 85(1) of the General Data Protection Regulation, Member States shall reconcile the right to the protection of personal data under this Regulation with the right to freedom of expression and information, including processing for journalistic purposes, as well as for the purposes of artistic or literary expression.

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(46) According to Article 85(2) of the General Data Protection Regulation, Member States shall provide exceptions or derogations from Chapter II (principles), Chapter III (the rights of the data subject), Chapter IV (the controller and the processor), Chapter V (the transfer of personal data to third countries or international organizations), Chapter VI (independent supervisory authorities), Chapter VII (cooperation and consistency), and Chapter IX (specific processing situations) for the processing of personal data for journalistic purposes, as well as for scientific, artistic, or literary expression, if such exceptions or derogations are necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information.

(47) According to the preamble (65) of the General Data Protection Regulation, “[...] the further retention of personal data shall be considered lawful if it is necessary for the exercise of the right to freedom of expression and information, for compliance with a legal obligation, for the performance of a task carried out in the public interest, or for the exercise of official authority vested in the controller, or for reasons of public interest in the area of public health, for archiving purposes in the public interest, for scientific and historical research purposes, or for statistical purposes, or as necessary for the establishment, exercise, or defense of legal claims.”

(48) According to the preamble (69) of the General Data Protection Regulation, “[e]very data subject shall have the right to object to the processing of personal data concerning them, even if the processing is lawful on the grounds of public interest or the exercise of official authority vested in the controller, or based on the legitimate interests of the controller or a third party. The controller shall demonstrate that their compelling legitimate interest overrides the interests or the fundamental rights and freedoms of the data subject.”

(49) According to the preamble (153) of the General Data Protection Regulation, “[m]ember states' laws must reconcile the rules on freedom of expression and information – including journalistic, scientific, artistic, and literary expression – with the right to the protection of personal data as provided for in this Regulation. It is appropriate for the processing of personal data solely for journalistic, scientific, artistic, or literary expression to be subject to exceptions or to be exempt from certain requirements laid down in this Regulation, where this is necessary to reconcile the right to the

protection of personal data with the right to freedom of expression and information, as guaranteed by Article 11 of the Charter. This is particularly applicable to the processing of personal data in the audiovisual field, as well as in news archives and press libraries. Consequently, member states shall determine the necessary exceptions and derogations through legislative measures to ensure a balance between these fundamental rights. Member states shall adopt exceptions and derogations concerning general principles, the rights of the data subject, the controller and processor, the transfer of personal data to third countries or international organizations, independent supervisory authorities, cooperation and consistency, and specific processing situations. If these exceptions or derogations differ among member states, the applicable national law of the controller shall apply. In consideration of the significance of the right to freedom of expression in every democratic society, concepts associated with this freedom, such as journalism, should be interpreted broadly.”

(50) According to Section 3(5) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), public interest data is defined as information or knowledge recorded in any manner or form, which does not fall under the definition of personal data, that is in the possession of an authority or person performing a state or local government task, as well as other public tasks defined by law, and which arises in connection with their activities or in the performance of their public duties, regardless of the manner of its processing, its independent or collective nature, including, in particular, its scope of authority, jurisdiction, and organizational structure.

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Evaluation of professional activities, including their effectiveness, the types of data held, the laws regulating operations, as well as data related to management and contracts entered into.

(51) According to Section 3(6) of the Infotv., public data of public interest: all data that does not fall under the definition of public interest data, the disclosure, accessibility, or making known of which is mandated by law for public interest reasons.

(52) According to Section 26(2) of the Infotv., public data of public interest includes the name, responsibilities, job position, managerial appointment of the person acting within the scope of duties and powers of a public authority, as well as other personal data related to the performance of public tasks, and those personal data whose accessibility is prescribed by law. Public personal data may be disseminated in compliance with the principle of purpose limitation in data processing.

(53) According to Section 38(2) of the Infotv., the Authority's task is to monitor and facilitate the enforcement of the right to the protection of personal data, as well as the right to access public interest and public data of public interest, and to promote the free flow of personal data within the European Union. The tasks and powers of the Authority are detailed in Articles 57(1), 58(1)-(3) of the General Data Protection Regulation and Sections 38(2)-(4) of the Infotv.

(54) According to Section 4(1) of Act CIV of 2010 on Freedom of the Press and Basic Rules of Media Content (hereinafter: Smtv.), Hungary recognizes and protects the freedom and diversity of the press.

(55) Smtv. Section 4(2) The freedom of the press extends to independence from the state, as well as from any organization and interest group.

(56) Smtv. Section 4(3) The exercise of press freedom must not constitute a crime or incite the commission of a crime, must not violate public morals, and must not infringe upon the personal rights of others.

(57) Smtv. Section 6(1) The media content provider, as well as any person in an employment relationship or other legal relationship aimed at performing work with them, is entitled to keep the identity of the person providing information related to media content provider activities (hereinafter: information source) confidential during judicial and administrative proceedings, and to refuse the submission of any document, record, object, or data carrier that may be suitable for identifying the information source.

(58) Smtv. Section 7(1) An employee of the media content provider, or a person in another legal relationship aimed at performing work with the media content provider, is entitled to professional independence from the owner of the media content provider, as well as protection against owner or supporter pressure aimed at influencing media content (editorial and journalistic freedom).

(59) Smtv. Section 10 Everyone has the right to be adequately informed about local, national, and

European public affairs, as well as events significant to the citizens of Hungary and members of the Hungarian nation. The entire media system's task is to provide authentic, prompt, and accurate information on these matters and events.

(60) Smtv. Section 13 Linear media services engaged in informational activities are obliged to provide balanced information in their published informational or news programs about events of public interest at the local, national, and European levels, as well as events significant to the citizens of Hungary and members of the Hungarian nation, and about controversial issues. The detailed rules of this obligation are established by law in accordance with the requirements of proportionality and the assurance of democratic public opinion.

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(61) Section 21. § (1) A media content provider independently decides on the publication of media content within the framework of the law and is responsible for adhering to the provisions set forth in this law.

(62) Section 2:42 of Act V of 2013 on the Civil Code (hereinafter: Civil Code)

(1) Everyone has the right to freely assert their personality, particularly the right to respect for private and family life, home, communication with others—by any means or instrument—and the right to a good reputation, within the limits of the law and the rights of others, and to be free from any hindrance in this regard.

(63) Civil Code 2:42 (2) Everyone is obliged to respect human dignity and the personality rights arising from it. Personality rights are protected under this law.

(64) Civil Code 2:42 (3) Conduct to which the affected person has consented does not violate personality rights.

(65) Civil Code 2:43. § The violation of personality rights particularly means

- a) the infringement of life, physical integrity, and health;
- b) the infringement of personal freedom, private life, and home;
- c) the disadvantageous discrimination of a person;
- d) the infringement of honor and good reputation;
- e) the infringement of the right to private secrets and the protection of personal data;
- f) the infringement of the right to bear a name;
- g) the infringement of the right to image and sound recording.

(66) Civil Code 2:44. § (1) The exercise of fundamental rights ensuring the free debate of public affairs may limit the personality rights of public figures to a necessary and proportionate extent, without violating human dignity; however, it must not infringe upon their private and family life, as well as their home.

(67) Civil Code 2:44 (2) A public figure is entitled to the same protection against communications or conduct that fall outside the scope of free debate on public affairs as a non-public figure.

(68) Civil Code 2:44 (3) Activities or data related to the private or family life of a public figure do not qualify as public affairs.

(69) Civil Code 2:45. § (1) The infringement of honor particularly means an expression that is unnecessarily offensive in its manner of expression and is capable of adversely influencing the social perception of another person.

(70) Civil Code 2:45 (2) The infringement of good reputation particularly means if someone states or disseminates false facts about another person that are offensive to that person, or presents true facts in a misleading manner.

(71) For data processing falling under the scope of the General Data Protection Regulation, according to Section 2 (2) of the Information Act, the General Data Protection Regulation must be applied with the supplements defined in the provisions specified therein.

(72) According to Sections 60 (1) and (2) of the Information Act, in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure upon the request of the affected person, and may also initiate a data protection authority procedure ex officio. The request for the initiation of a data protection authority procedure may be submitted in the cases specified in Article 77 (1) of the General Data Protection Regulation, as well as in point b) of Section 22.

(73) According to Section 60 (5) of the Information Act, in the case specified in paragraph (2), the request must include, in addition to what is defined in the law on general administrative procedure,

- a) the designation of the alleged infringement,
- b) the description of the specific conduct or state constituting the alleged infringement,
- c) the identification of the data controller or data processor responsible for the alleged infringement.

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if necessary, the data available to the applicant,

- d) facts and evidence supporting the claims related to the alleged infringement, as well as
- e) a specific request regarding the remedy of the indicated infringement.

(74) According to Section 61 (1) a) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in Article 58(2) of the General Data Protection Regulation in connection with the data processing operations defined in Section 2 (2) of the Infotv. Accordingly, in exercising its corrective powers, the Authority:

- a) warns the data controller or the data processor that certain planned data processing activities are likely to violate the provisions of this regulation;
- b) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this regulation;
- c) instructs the data controller or the data processor to fulfill the request of the data subject regarding the exercise of rights under this regulation;
- d) instructs the data controller or the data processor to bring their data processing operations into compliance with the provisions of this regulation – in a specified manner and within a specified time frame, if applicable;
- e) instructs the data controller to inform the data subject about the data protection incident;
- f) temporarily or permanently restricts data processing, including the prohibition of data processing;
- g) orders the rectification or deletion of personal data, or the restriction of data processing, in accordance with Articles 16, 17, and 18, and orders the notification of the recipients to whom the personal data have been disclosed, in accordance with Article 17(2) and Article 19;
- h) withdraws the certificate or instructs the certifying body to withdraw the certificate issued in accordance with Articles 42 and 43, or instructs the certifying body not to issue the certificate if the conditions for certification are not or are no longer met;
- i) imposes an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph; and
- j) orders the suspension of data flows to a third country or international organization.

(75) According to Section 61 (6) of the Infotv., until the expiration of the deadline for initiating a lawsuit against the decision or, in the case of an administrative lawsuit, until the court's final decision, the disputed data related to the data processing may not be deleted or destroyed.

(76) Based on Section 75/A of the Infotv., the Authority exercises the powers specified in Articles 83(2)-(6) of the General Data Protection Regulation with consideration of the principle of proportionality, particularly by addressing the first-time violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or data processor in accordance with Article 58 of the General Data Protection Regulation.

(77) In the absence of differing provisions in the General Data Protection Regulation, the provisions of the Administrative Procedure Act (Ákr.) shall apply to the data protection authority procedure initiated upon request, with the deviations specified in the Infotv.

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(78) According to Section 35 (1) of the Administrative Procedure Act (Ákr.), the application is a statement by the client requesting the conduct of an administrative procedure or the authority's decision in order to enforce their rights or legitimate interests.

(79) According to Section 51 (1) point b of the Ákr., if the authority exceeds the administrative deadline, it shall pay the applicant client an amount equivalent to the fee payable for the conduct of the procedure, or the administrative service fee paid for administrative authority procedures or administrative-type services, or in the absence of such, ten thousand forints, and the applicant client

shall also be exempt from the payment of procedural costs.

(80) Pursuant to Article 83 (7) of the General Data Protection Regulation, without prejudice to the corrective powers of supervisory authorities under Article 58 (2), each Member State may establish rules regarding whether an administrative fine can be imposed against a public authority or other body performing public tasks based in that Member State, and if so, to what extent.

(81) The preamble of Act LIII of 2018 on the Protection of Privacy (hereinafter: Mtv.): The right to privacy belongs to every person and must be respected even during the free discussion of public affairs, taking into account that the free discussion of public matters should not infringe upon private and family life, as well as the home. In accordance with the Fundamental Law, public figures are also entitled to the protection of privacy and the tranquility of their homes. The law states that a public figure is only obliged to tolerate interference in connection with their public activities.

(82) Mtv. Section 1: Everyone has the right to have their private and family life, home, and communication (hereinafter collectively referred to as the right to privacy) respected.

(3) The essence of the right to privacy is that, except for exceptions defined in separate legislation, others may not infringe upon it against the will of the individual.

(83) Mtv. Section 7 (1): Everyone has the right to enhanced protection of their privacy, and may only disclose it to others voluntarily or in cases defined by law.

(2) A public figure's private and family life, as well as their home, is entitled to the same protection as that of a person who is not considered a public figure.

(84) Mtv. Section 8 (1): The purpose of the right to respect for privacy is, in particular, the protection of the right to bear a name, personal data, private secrets, images and sound recordings, honor, and good reputation.

(2) The violation of the right to respect for privacy may consist of the misuse of personal data, secrets, images, or sound recordings that an individual wishes to keep private, or the infringement of honor and good reputation.

(85) Mtv. Section 10 (1): The state provides legal protection for the tranquility of the home. The tranquility of the home ensures the development of private and family life, as well as the free and full experience of private life. In order to respect this, everyone is entitled to enhanced protection of their home as the setting for their private and family life. (2) The violation of the right to respect for the home particularly means unauthorized intrusion into others' homes or other unauthorized interference in an insulting, disturbing, or harassing manner.

IV.

The Authority's Decision

IV.1. The Identity of the Data Controller

(86) The following facts establish the applicant's status as a data controller:

- At the time of initiating the procedure, the applicant was indicated as the publisher in the imprint of the online press products specified in paragraph (7) of this decision,
- The privacy policy available on the website of the press products at the time of initiating the procedure...

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In the notifications regarding data processing associated with the use of websites, the data controller is the Applicant,

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the Applicant is listed as the publisher of press products in the online registry of the National Media and Infocommunications Authority.²

(87) The publication of the Articles contested by the Applicant falls under the scope of the General Data Protection Regulation (GDPR) according to Article 2, paragraph (1) of the GDPR; consequently, the rules of the GDPR apply to this data processing.

(88) In this regard, the Applicant, as Metropol, Magyar Nemzet, szegedma.hu, BEOL, Origo, Ripost, 888.hu, Bors, and SZOLJON, is considered the data controller concerning the contested data processing.

IV.2. The Identity of the Applicant

(89) In the matter of public interest-public figure, recent constitutional court practice and the case law evolving in response to it have resulted in significant positions that generally reinforce the interpretation that the "public interest" nature of the matter affected by the expression of opinion is the primary consideration when determining the reduced scope of personality protection.

(90) According to the previous position of the Data Protection Commissioner, number 26/K/1999, the extent to which the right to the protection of personal data can be limited is what distinguishes a public figure from a "civilian" who does not engage in public life. In the same position, the Data Protection Commissioner stated that "[...] this category undoubtedly includes every person who exercises public authority and who decides on the use of public funds. It is also clear that this is not a homogeneous group of individuals. Likewise, there are no legally established precise boundaries to determine which data of persons performing public duties or engaging in public life they must tolerate being made public, and where their private life, shielded from the public, begins. This determination is possible and necessary on a case-by-case basis."

(91) Article VI, paragraph (1) of the Fundamental Law ensures compliance with the new challenges of digital life, as well as with the provisions of Article 7 of the Charter of Fundamental Rights, as it places privacy in a broader context and simultaneously regulates at a constitutional level the collision of privacy rights and other fundamental rights (such as freedom of expression). The Fundamental Law names the enhanced protection of key elements of privacy rights as an external limit to the freedom of expression, which includes the right to respect for private and family life, as well as the home.

(92) The Authority – taking into account the case law of the European Court of Human Rights (hereinafter: ECtHR) and the Constitutional Court – emphasizes that communications made in connection with public interest enjoy broader freedom of expression.

(93) Based on the Constitutional Court's decision 7/2014. (III. 17.), in determining whether someone qualifies as a public figure, it is not primarily the person's status that should be examined, but rather whether the individual can be connected in some way to a public interest or public issue, as the focus of political expression is primarily on the issues themselves, rather than the individuals involved.

{7/2014. (III. 17.) AB [46] – [50], [57]}

2 Press Products (nmhh.hu) (date of inquiry: November 14, 2023)

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IV.3. Scope of Processed Personal Data

(94) In evaluating the definition of personal data, the following conceptual elements must be examined:

- the data ("any information") formal and content criteria;
- the identified or identifiable natural person ("data subject");
- the relationship between the data and the data subject ("relevant").

(95) Generally, any information that relates to an individual, or that influences or may influence the individual's situation in some way, is considered personal data. Therefore, information that affects the individual's situation qualifies as personal data. Data concerning the data subject particularly includes the name of the data subject, identification mark, knowledge characteristic of one or more physical, physiological, mental, economic, cultural, or social identities, as well as their image, voice, and physical characteristics suitable for identifying the data subject. Personal data also includes information concerning the individual's private and family life, which falls within the realm of so-called "privacy," as well as facts or value judgments related to their workplace, economic, or social activities.

(96) The data subject can be any specific natural person who can be identified or is identifiable based on their personal data—either directly or indirectly. In relation to the data subject, the status of the natural person and the aspect of identifiability must be examined. When assessing whether information qualifies as personal data, attention must be paid to the question of identifiability, i.e., whether the individual can be identified based on the given information. If so, the information is clearly considered personal data.

(97) A fundamental element of the concept of personal data is the connection between the information and the data subject. The information must be related to the data subject, and its personal data nature remains as long as the connection between the information and the data subject can be restored.

(98) In the Applicant's Application, they contest the publication of the data from the e-log concerning the construction of their family house, as well as photographs taken of their family house. This data does not concern the Applicant directly; it pertains to objects carried by the information, yet it relates to the Applicant, thus qualifying as their personal data.

(99) According to the opinion 4/2007 (WP 136) of the working group under Article 29 regarding the concept of personal data, a piece of data can be considered "relevant" to an individual if its use is likely to affect the rights and interests of that person, taking into account all circumstances surrounding the case.

(100) The use of the data cited by the Articles from the e-log, as well as photographs of the Applicant's family house and the previous house located on the Applicant's property, is likely to affect the Applicant's rights and interests, influence their situation, and likely impact how they are perceived by voters. This is supported by the fact that, according to an article published by Magyar Nemzet on July 5, 2022, a report was made following the publication of the Articles in connection with the construction: "The Budapest Regional Prosecutor's Office, which is under the Central Investigation Prosecutor's Office, is investigating the report related to the Tordai Bence villa scandal," informed Szabadi Péter to the Mediaworks News Center. The deputy spokesperson of the KNYF added that the evaluation of the report is still ongoing. István Tényi, known for his reports in the Tordai case, turned to the authorities, citing a recent article from Metropol in his report."

IV.4. Legality of the Contested Data Processing

(101) In this case, the Authority examined the legality of the data processing related to the Articles published by the Respondent, as well as whether the Respondent fulfilled their obligation of prior information.

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IV.4.1. Legal basis for the recording and publication of personal data

(102) The General Data Protection Regulation defines in Article 6(1)(a)-(f) which legal bases may be applied in the case of the processing of personal data.

(103) According to the consistent position of the Authority, the legal basis for data processing related to journalistic activities—unless it concerns voluntary consent—is the legitimate interest under Article 6(1)(f) of the General Data Protection Regulation. The application of this legal basis has also been confirmed by the Curia in its judgment Kfv. 37.978/2021/10. Section 10 of the Media Act establishes the public's right to information, that is, the right to be informed about local, national, and European public affairs, as well as significant events for the citizens of Hungary and members of the Hungarian nation, stating that the press's task is to provide authentic, prompt, and accurate information on these matters and events. In this regard, the court stated in its referenced judgment that this provision of the Media Act does not impose a public interest task on the media outlet, thus the journalistic activities it performs cannot be classified as a public interest task or, in the terminology of Hungarian national law, as a public duty. The court also pointed out that journalistic activity is related to the fundamental right to information and the right to be informed as defined in the Fundamental Law. According to these provisions, the press's task is necessary for ensuring the constitutional fundamental rights protected by the Fundamental Law, which require protection; therefore, the data processing necessary for fulfilling this task is essential for the press to carry out its duties as recorded in the Media Act.

(104) According to Article 6(1)(f) of the General Data Protection Regulation, the processing of data is lawful if it is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data.

(105) The Authority first examined whether the Applicant or a third party had a legitimate interest in the data processing. The essential findings supporting the legitimate interest of the Applicant and third parties in data processing are contained in paragraphs 7/2014. (III.7.) AB [39], [40], [42], and [48].

(106) The right to freedom of expression occupies a prominent place in the fundamental rights system of the Fundamental Law. The opportunity for free speech is essential for the realization of individual autonomy, as the development of personality is entirely inconceivable without anyone being able to freely express their views and thoughts to others without substantive constraints. The free

self-expression of free individuals is a fundamental element and meaning of the constitutional order based on the Fundamental Law. On the other hand, freedom of speech is the foundation of a democratic, pluralistic society and public opinion. Without the freedom and diversity of social and political debates, there is no democratic public opinion, and there is no democratic rule of law.

(107) Freedom of the press—which encompasses the freedom of all types of media—is an institution of freedom of speech. The press, despite the increasingly complex and diverse nature of its activities, is primarily a means of expressing opinions, shaping opinions, and acquiring information essential for forming opinions. The special nature of freedom of speech in this regard also applies to freedom of the press, and the dual justification of freedom applies to it as well: the significance of freedom of the press is justified by both the subjective fundamental right and the constitutional institution of democratic public opinion.

(108) The special role of freedom of speech entails that, on the one hand, it must only exceptionally yield to other rights or constitutional values invoked for its limitation, and on the other hand, laws restricting free expression must be interpreted restrictively.

(109) Speech concerning public figures is a central component of political expression. Statements concerning the activities, views, and credibility of those shaping public affairs constitute an essential part of the discussion of public matters. A significant portion of social and political debates consists precisely of the interactions of public figures and the public discourse—

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Typically through the press, participants criticize each other's ideas, political performance, and in connection with that, each other's personalities. The press has a constitutional mission to oversee the exercise of public power, which includes presenting and even sharply criticizing the activities of individuals and institutions involved in shaping public affairs. Therefore, despite the fact that the focus of public expression is on public affairs themselves—not on public figures—the majority of statements regarding the personalities of those shaping public affairs necessarily and inevitably fall within the protective scope of political expression. The outstanding constitutional significance of debating public affairs entails that the protection of the personalities of public figures can only be adequately met by a narrower restriction of freedom of speech and press, as derived from the Fundamental Law. It is particularly important from a constitutional perspective that citizens and the press can participate in social and political debates without uncertainty, compromise, and fear. It would counteract this if speakers had to broadly consider legal accountability in light of the personality protection of public figures.

(110) The Authority established in paragraph (18) of this decision that the Applicant, as a member of parliament and co-chair of a political party, is clearly a public figure. It can also be established that the Articles report on public affairs, specifically examining the credibility of a public figure—the Applicant: whether the Applicant has a moral basis to criticize other public figures for their illegal activities, or whether the Applicant's own alleged illegal conduct—according to the Articles, illegal construction—excludes this. The public debate was initiated by the Applicant, among other things, with the following statements posted on their Facebook page on March 30, 2022: “Due to the Government Office's fault, the illegal, nature-destroying Csipak villa is still standing,” “We will no longer tolerate that Fidesz's privileged individuals stand above the law, and we will not tolerate that state party bureaucrats like Sára Botond use their official power to cover up the illegal affairs of other Fidesz criminals!” “There is no place in the National Assembly for politicians who disregard both the rule of law and natural resources!”

(111) The Respondent supported their legitimate interest in data processing for themselves and their readers with the following: the data disclosed in the contested articles were used by the editorial offices, as media organizations, in one of today's widely discussed, significant public debates for opinion formation, in order to adequately inform the public within the framework of freedom of expression, contributing to the exercise of press freedom and the right to information as fundamental rights, thereby contributing to the public debate and its substantive assessment. The subject of the public debate is the Applicant, as an active public figure politician's illegal construction, which is capable of influencing the social perception of the Applicant's credibility as a public figure and politician, and which has been addressed by several media outlets in recent times.

(112) Considering that the purpose of the Respondent's data processing is to inform the public regarding the credibility of a politician as a public figure, particularly in relation to a public affair whose public discussion was initiated by the Applicant, the Authority establishes that both the Respondent and the readers had a legitimate interest in the data processing.

(113) Subsequently, regarding the applicability of Article 6(1)(f) of the General Data Protection Regulation, the Authority had to examine whether the data processing is necessary for the enforcement of the legitimate interests of the Respondent or a third party, that is, whether the contested data processing is necessary for informing about the public affair identified in the Articles.

(114) The Articles examine the credibility of the Applicant as a public figure. A report on an alleged violation is clearly necessary for the examination of credibility. The report on the Applicant's alleged illegal construction is supported by photographs of the relevant property and data from the e-logbook in the Articles.

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(115) The Authority therefore establishes that the recording and publication of the Applicant's personal data was necessary for the enforcement of the legitimate interests of the Respondent and the readers, namely to inform about the credibility of a politician as a public figure. The Applicant and their family members are not visible in the recordings, and only those details from the e-log that pertain to the extent of the transformation of the previous residence are included in the Articles. According to the Authority, the personal data published in the Articles do not exceed the scope of data necessary to substantiate the alleged infringement and to inform about it.

(116) Subsequently, the Authority had to consider whether the interests or fundamental rights and freedoms of the Applicant take precedence over the legitimate interest of the Respondent.

(117) In weighing the interests and fundamental rights, it is essential to highlight the Media Act, which, according to Section 7(2), provides enhanced protection for the home even in the case of public figures.

(118) At the same time, the Authority refers to paragraph 57 of the Constitutional Court's decision 7/2014. (III.7.), where the Constitutional Court states: "However, one cannot ignore the status of the person concerned by the statement: in the case of persons exercising public authority and public figures, the limitation of personality protection is considered 'necessary and proportionate' to a wider extent compared to everyone else. On the one hand, they have become more active shapers of public affairs by their own decision, thus accepting evaluations and criticisms before the public of the affected community, and therefore they must tolerate statements that are critical or defamatory towards them in the context of public affairs to a greater extent. On the other hand, those exercising public authority and public figures can utilize mass communication tools more broadly and effectively against attacks directed at them than anyone else. Thirdly, in their case, criticism and qualification directed at their person are generally treated by public opinion as manifestations that should be interpreted differently, as a necessary part of democratic debate, typically along various political interests. In Hungary, the peculiarities of the functioning of plural political public discourse have developed in recent times, among which the statements made during public debates can be evaluated by society with due consideration."

(119) In paragraphs [29] and [31] of the same decision, the Constitutional Court also refers to the case law of the European Court of Human Rights (hereinafter: ECtHR). The ECtHR has argued in favor of the broader criticizability of politicians acting in public affairs, stating that politicians consciously and inevitably expose themselves to being closely monitored by journalists and the wider public regarding every word and action. Consequently, they must have greater tolerance for criticism, especially when they themselves participate in public debate [ECtHR, Oberschlick v. Austria (11662/85), May 23, 1991, paragraph 59]. However, in the case of public figures, particularly politicians, there may also be situations where, under special circumstances related to the discussion of public affairs, the public's right to information must be considered not only in relation to the public performance itself but also concerning the individual's private life [ECtHR, Von Hannover v. Germany (no. 2) (40660/08 and 60641/08), February 7, 2012, paragraph 110].

(120) In paragraph [33] of decision 26/2019. (VII.23.), the Constitutional Court emphasized regarding the public disclosure of information related to the private life of public figures: "Exceptional public

figures also enjoy the protection of Articles II and VI of the Fundamental Law. The media cannot disclose their activities that are not made public and do not relate to public affairs (the protected part of their private life) by referring to Article IX of the Fundamental Law. However, if a slice of private life is the subject of public debate, then - strictly within this context - the freedom of expression must be prioritized."

(121) The personal data published in the Articles pertains to the Applicant's private life. However, this very slice of their private life is the subject of public debate: the presumed actions of public figures...

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to what extent unlawful constructions remain without legal consequences, and whether they receive assistance from their connections in decision-making positions.

(122) The Applicant, as a public figure, could expect that in the public debate initiated by him, his credibility would be examined regarding the subject of the debate, and the public would be informed about the results of the examination. A public figure cannot always expect that certain areas of their private life will be made public; however, when the subject of a public debate initiated by them concerns the unlawful construction of a public figure, which is a matter affecting the private sphere, they must expect that the legality of their own construction, this aspect of their private life, may become part of the public debate.

(123) The Authority found that the contested data processing operations did not constitute an unnecessary and disproportionate interference with the Applicant's private life, as the data processing was intrinsically linked to the public matter discussed in the Articles, and furthermore, the Articles only shared data from the e-log that aimed to substantiate the photographs of the property and the alleged unlawfulness of the construction, without recording other aspects of private life that were unnecessary for substantiating the Applicant's credibility. Therefore, the Authority rejects the Applicant's request for a determination that the Respondent unlawfully processed his personal data. The Authority also rejects the Applicant's request that the Authority instruct the Respondent to delete the unlawfully processed personal data and impose a fine.

IV.4.2. Information on Data Processing

(124) The Applicant requested the determination of a violation of Article 14 of the General Data Protection Regulation, considering that there was no prior information provided regarding the processing of the e-log data by various media outlets, as well as the taking and publication of photographs.

IV.4.2.1. Information on the Recording and Publication of E-log Data

(125) According to the consistent position of the Authority, which was also confirmed by the judgment of the Budapest Court of Appeal No. 104.K.701.309/2021/15, data controllers engaged in journalistic activities are also obliged to provide information to the data subjects in accordance with Article 14 of the General Data Protection Regulation. The judgment of the Budapest Court of Appeal states that "Every data subject should have received individual information regarding the provisions of Articles 14-15 of the General Data Protection Regulation. [...] The argument of the first-instance plaintiff that [...] the rights of the data subjects contained in the general data processing information published on its website replaced the provisions of Articles 14-15 of the General Data Protection Regulation is unfounded. According to Article 14(1) and Article 15(1) of the General Data Protection Regulation, the data subject is entitled to information and feedback from the data controller regarding the processing of their personal data, thus the first-instance plaintiff was obliged to engage in active information activities concerning the second to fourth-instance plaintiffs. The argument is insignificant – especially since the reference to the availability of the general data processing information published on the Forbes website was omitted from the information – that the data subjects could have checked the website. The first-instance plaintiff failed to fulfill the above active information obligation, therefore the defendant lawfully established the violation of Articles 14-15 of the General Data Protection Regulation. [...] The information provided under Article 14 of the General Data Protection Regulation must contain individualized information about the processed personal data for the data subjects, just as the information regarding the right of access of the data subjects under Article 15(1) of the General Data Protection Regulation. The purpose of individualized information is precisely to provide the data

subject with specific – not general in form and nature – information about the processing of their own personal data and their related rights. A publication on the data controller's website

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The general information notice does not provide individualized information regarding which personal data the data controller processes about the data subject, what the source of the data is, what the legal basis for data processing is, and, in accordance with the purpose of this data processing, what duration of data processing the data subject can expect. The data subject can exercise their rights and assert their claims based on this individualized information, and can decide which personal data corrections to request from the data controller; furthermore, if there is a need for restriction or deletion of data, which personal data they can initiate the restriction or deletion of.

(126) Despite multiple requests from the Authority, the Respondent did not state whether they provided individualized information to the Applicant. Regarding their information, the Respondent did not provide a specific answer but stated that the general notice available on the data controller's website contains information related to data processing. The Applicant stated that in none of the cases listed in paragraph (7) of this decision was prior information provided regarding the data processing.

(127) Based on the statements of the Respondent and the Applicant, the Authority officially established that the Respondent did not provide individualized information to the Applicant, thereby violating Articles 14 (1)-(3) of the General Data Protection Regulation.

IV.4.2.2. Information on the recording and publication of drone footage

(128) The Applicant refers to a violation of Article 14 of the General Data Protection Regulation on the grounds that prior information regarding data processing was not provided in any of the cases listed. The Authority did not agree with the Applicant regarding the legal qualification of the absence of information about drone footage. According to the Authority's position, the footage taken by the Respondent's employee of the Applicant's house qualifies as personal data obtained from the Applicant based on the following.

(129) In its decision NAIH-3476-1/2022, the Authority referred to the opinion of the working group on transparency under Article 29 of the (EU) 2016/679 Regulation (hereinafter: Opinion) and stated that "The fact that the camera footage and photograph were taken by one of the Respondent's employees does not mean that the personal data was not obtained directly from the Applicant." The Authority based this conclusion on the Opinion, which states that Article 13 of the General Data Protection Regulation applies when data is obtained from the data subject. This includes the following personal data: data consciously provided by the data subject to the data controller (e.g., when filling out an online form); or data collected by the data controller from the data subject through observation (e.g., using automated data collection tools or data collection software, such as cameras, network devices, Wi-Fi tracking, radio frequency identification, or other types of sensors). According to the Opinion, Article 14 applies when data is not obtained from the data subject. This includes personal data obtained by the data controller from various sources, including third-party data controllers; publicly available sources; data brokers; or other data subjects.

(130) The Authority officially established that by failing to provide information regarding the recording and publication of images taken of the Applicant's house published in the Articles, the Respondent violated Articles 13 (1)-(2) of the General Data Protection Regulation.

IV.5. Further data processing related to the Request

(131) The Applicant requested the imposition of sanctions as defined in Section 61 of the Infotv. against the press organs violating the General Data Protection Regulation, as well as potentially against other authorities (building authority).

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(132) The Authority requested a statement from the Applicant regarding the source from which they obtained the data derived from the e-logbook. The Applicant stated that the data was delivered in a sealed envelope by an unknown sender to the editorial office of Metropol. The Authority was unable to investigate the data processing related to the data derived from the e-logbook by other bodies or individuals due to the lack of knowledge of their identities. No results are expected from further evidence, as multiple parties may have access to a construction log, and according to Section 6 (1) of

the Smtv., the media content provider, as well as any person in an employment relationship or other legal relationship aimed at performing work with them, is entitled to keep the identity of the person providing information in connection with the media content provider's activities (hereinafter: information source) confidential during judicial and administrative proceedings, and to refuse the transfer of any document, record, object, or data carrier that may potentially identify the information source.

(133) In light of this, the Authority rejects the Applicant's request to impose the sanctions specified in Section 61 of the Infotv. against other bodies (for example, the building authority) as well.

V.

Request for the imposition of a fine

(134) The application of the legal consequences of a data protection fine does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for them. Therefore, regarding the application of this legal consequence, which falls within the scope of public interest enforcement, the Applicant is not considered a client under Section 10 (1) of the Ákr., and since it does not meet the requirements of Section 35 (1) of the Ákr., there is no basis for submitting a request in this regard, and these parts of the submission cannot be interpreted as a request.

VI.

Legal consequences

(135) At the express request of the Applicant, the Authority also examined ex officio whether it is justified to impose a data protection fine against the Applicant.

(136) The Authority found the Applicant liable for the data protection violation due to the disregard of the rights of the data subjects, based on point b) of paragraph (2) of Article 58 of the General Data Protection Regulation.

(137) The Authority examined ex officio whether it is justified to impose a data protection fine due to the Applicant's violation. In this context, the Authority assessed all circumstances of the case ex officio based on paragraph (2) of Article 83 of the General Data Protection Regulation and Section 75/A of the Infotv., and determined that in the case of the violations uncovered during this procedure, the imposition of a sanction is proportionate and has a deterrent effect; therefore, the imposition of a fine is not necessary.

(138) In this regard, the Authority assessed all circumstances of the case based on paragraph (2) of Article 83 of the General Data Protection Regulation and Section 75/A of the Infotv., and in its opinion, the sanction for the violation uncovered during this procedure is proportionate and has a deterrent effect; therefore, the imposition of a fine is not necessary. The Authority took into account that the violation of Articles 13 and 14 of the General Data Protection Regulation concerning the Applicant had not been previously established, and that the processed personal data do not qualify as special data, and that neither the Applicant nor their family, nor any further personal data related to their family or private life activities are visible in the processed recordings.

(139) Based on point b) of paragraph (2) of Section 61 of the Infotv., the Authority ordered the publication of this decision, with particular regard to the provisions contained in paragraphs (89)-(93) and (107)-(115) of the decision, thus especially noting that this decision is to be published by the Authority.

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The decision was made in connection with the activities of a Member of Parliament, the facts and subject of the case involve a public debate, and thus also in the interest of the enforcement of the constitutional fundamental rights named in the resolution.

(140) Based on the above, the Authority decided as stated in the operative part.

VII.

Other Questions

(141) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends over the entire territory of the country.

(142) The decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its

communication according to Section 82 (1) of the Ákr.

(143) The rules of administrative litigation are defined by Act I of 2017 on Administrative Procedure (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) point a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) point b) of the Kp., legal representation is mandatory in cases falling under the court's jurisdiction. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(144) According to Section 124 (6) of the Kp., if in the case of a claim aggregation permitted by law, part of the claims should be adjudicated in simplified proceedings and another part according to general rules, the court shall proceed according to the general rules.

(145) Section 29 (1) of the Kp. and, in this regard, Section 604 of the Pp. apply, according to Section 9 (1) point b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(146) The time and place for the submission of the statement of claim is determined by Section 39 (1) of the Kp.

(147) The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) point h) of the Itv.

Budapest, June 7, 2024.

Dr. habil. Attila Péterfalvi
President
Professor Emeritus